

IN THE MAGISTRATE COURT OF Fulton COUNTY, GEORGIA

Peach State Properties, LLC

, Plaintiff,

vs.

John Doe

, Defendant.

Case No.:

24D0012345

EMERGENCY MOTION TO STAY THE WRIT OF POSSESSION

Date: September 14, 2026

COMES NOW, the Defendant, John Doe, appearing pro se, and respectfully moves this Honorable Court for an Emergency Stay of the Writ of Possession issued in the above-styled case, and in support thereof states as follows:

1. JURISDICTION AND PARTIES

This Court has jurisdiction over this matter pursuant to O.C.G.A. Title 44, Chapter 7. Plaintiff Peach State Properties, LLC is the landlord of the subject property located at 857 Peachtree Street NE, Atlanta, GA, 30309. Defendant John Doe is the tenant currently residing at the subject property.

2. GROUNDS FOR EMERGENCY STAY

- a. Immediate and Irreparable Harm: Defendant will suffer immediate and irreparable harm if the eviction proceeds under the Writ of Possession without additional time. Defendant requires additional time to secure alternative housing, arrange for the safe relocation of personal belongings, and make necessary arrangements for family members and dependents who reside at the property. Immediate eviction would result in homelessness and the potential loss or damage of personal property.
- b. Good Faith Effort to Resolve: Defendant has been working in good faith to address the rental arrears and communicate with Plaintiff. Defendant seeks additional time to arrange payment, explore available resources, and work toward a resolution that would allow Defendant to either cure the default or transition out of the property in an orderly manner.
- c. Equitable Considerations: A brief stay of the Writ of Possession would serve the interests of justice and equity. The stay would provide Defendant with a reasonable opportunity to vacate the premises voluntarily, preserve the dignity of all parties, and avoid the trauma and disruption associated with a forced lockout. Granting a stay would not prejudice Plaintiff's rights, as Plaintiff retains the judgment and the right to possession, and the stay would merely delay execution for a limited period.

3. RELIEF REQUESTED

WHEREFORE, Defendant John Doe respectfully requests that this Honorable Court grant this Emergency Motion to Stay the Writ of Possession and:

- a. Issue an immediate stay of the Writ of Possession to prevent the scheduled eviction and lockout;
- b. Grant Defendant additional time to vacate the premises voluntarily or to cure the default;

Number of days:

- c. Schedule an emergency hearing on this Motion at the earliest possible date;
- d. Grant such other and further relief as this Court deems just and proper.

4. REQUEST FOR EXPEDITED CONSIDERATION

Due to the emergency nature of this matter and the imminent threat of eviction, Defendant respectfully requests that this Motion be considered on an expedited basis and that the Court schedule an emergency hearing as soon as practicable.

Respectfully submitted this ____ day of _____, 20____.

Name:

John Doe

Address:

857 Peachtree Street NE, Atlanta, GA, 30309

Phone:

(404) 555-0167

Email:

john.doe.ga@example.com

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true and correct copy of the foregoing Emergency Motion to Stay the Writ of Possession has been furnished to Peach State Properties, LLC at 3344 Piedmont Road NE, Atlanta, GA 30305 on this ____ day of _____, 20____. Served by:

☐

U.S. Mail

☐

Hand Delivery

☐

Email